

RESOLUTION OF FILE OF ACTIONS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On October 6, 2023, A.A.A. with NIF ***NIF.1 (hereinafter the claimant) filed a complaint with the Spanish Agency for Data Protection against CLARA BIKES, S.L. with NIF B66440702 (hereinafter, the respondent).

The reasons for the complaint are as follows:

The claimant states that they are a customer of the respondent and that, following an incident, they attempted to request the deletion of their data from the respondent. They indicate that they visited the entity's website to gather information to make their deletion request and found that the entity's Privacy Policy is outdated. Therefore, they proceeded to send a burofax on May 23, 2023, to the respondent, submitting their request for data deletion, which was acknowledged as received, according to the shipping information provided by CORREOS, on June 15, 2023, without having received any response to their request after the deadline for obtaining such a response had passed. They provide a copy of the document requesting the deletion of their data and a receipt issued by CORREOS for the sending of the burofax to the respondent.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on November 10, 2023, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

This request was reiterated on November 21, 2023, and December 4, 2023.

As of January 4, 2024, no response had been received from the respondent.

THIRD: On January 6, 2024, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

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FOURTH: The respondent replied to the requests indicated in the second fact on January 20, 2024. Specifically, the respondent has made the following statements:

“1).- This party points out, as can be seen in the text of the complaint submitted by Mr. A.A.A. himself, that all of this stems from a complaint regarding a service provided on Mr. A.A.A.'s bicycle by the company.

2).- Never after receiving the burofax that has been submitted have Mr. A.A.A.'s data been used for advertising, nor to send any type of communication related to the company or our brand.

They only proceeded to respond to the complaints that he made directly to the company's email and phone, providing him with solutions regarding what he raised about the bicycle.

Mr. A.A.A. in conversations via WhatsApp (05-18-2022) includes a screenshot of a conversation with B.B.B. regarding the incident he reported to SRAM (due to technical issues with the bicycle), in which he provides his two contact email addresses.

A screenshot of this communication is attached.

Mr. A.A.A. himself sends a burofax requesting the deletion of his data on May 16, 2023, but he himself sends an email to the company on May 25, 2023, to ***EMAIL.1 with two of his personal emails (***EMAIL.2 and ***EMAIL.3) responding in an attached PDF in which he himself replies to the received email, contradicting his own actions, as he is the one who communicated both his phone number and his emails, and everything that is written or called to him is in reference to the complaint regarding the bicycle issue.

In that same text at the end, he again states that "Finally, I just spoke with CORREOS and they

confirm that you will receive the burofax today."

And so it was, the burofax in which, after responding to everything related to his complaint regarding the bicycle, at the end of everything, he requests the deletion of his personal data was received on May 25, 2023.

From that date, his data was deleted, and CLARA BIKES, S.L. has never contacted him again.

3) Likewise, regarding the reference that he considered the legislation indicated on our company's page and email to be outdated, we must point out that at no time did this prevent him from exercising his right, as it has been, after receiving his request on May 25, 2023, his data was deleted from the system.

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We reiterate that Mr. A.A.A. contradicts himself in his complaint, as if he sent a burofax on May 16 to unsubscribe, why does he himself respond on May 25 following, providing again his two emails?

The mentioned email and attached PDF are included.

Thus, this party points out that, in accordance with Article 64 of L.O. 3/2018, of December 5, the procedure cannot be initiated, as none of Mr. A.A.A.'s rights have been violated, since upon receipt of his request, effective receipt of his burofax, his data was deleted, so there is no infringement of the rights provided in Articles 15 to 22 of the law.

No harm has been caused to Mr. A.A.A., as his right to the deletion of data has been fully guaranteed with the application of the deletion of his data, without it being used in any medium."

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Data Protection Agency is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

The AEPD has verified through the documentation provided by the complained entity that a response has been given to the right of deletion exercised by the complaining party, and the personal data of the complaining party has been deleted in response to their request.

Regarding the privacy policy of CLARA BIKE S.L, following this link ***LINK.1, the following content is accessed:

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"Who is responsible for the processing of personal data?

The data is registered in the database owned by C.C.C., located at ***ADDRESS.1.

What data do we collect and process?

The personal data we collect for the purposes explained in this Statement are:

- Identifying data, contact data, and payment data (name and surname, email, document number, NIF,

address).

We want you to know that you have no obligation to provide us with detailed personal information, although the rejection or inaccuracy of such information would prevent us from offering the services or products offered on this website. The inaccuracy or falsity of the personal data you provide may cause harm to your rights or interests, to ours, or to those of third parties.

What do we do with your personal data?

Your personal data detailed above is collected and processed for the following purposes:

- Processing of purchases and billing.
- Management of inquiries.
- Advertising, offers, and/or promotions.

The use of your data for any purpose other than those detailed will be communicated to you before we proceed with its processing.

How do we share your personal data?

We are committed not to sell, disclose, transfer, or distribute your personal data to third parties in any other way, except as provided in this Privacy Statement.

In this regard, we inform you that the provider of the platform and technology of this website will act as a data operator and is committed to processing them in accordance with this Privacy Statement.

Between us and the provider, we will process your data to provide you with the services or products you acquire through the website. Additionally, personal data may be transferred to other third parties acting on our behalf to process them in accordance with the purposes for which they were originally collected or may be processed in another lawful manner, such as the provision of services (such as payments or logistics), evaluation of the usefulness of the website, marketing, data management, or technical assistance.

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These third parties have entered into a contract with us to use personal data exclusively for the agreed purposes and not to sell or disclose your personal data to third parties, unless required by law, permitted by us, or indicated in this Privacy Statement.

How long will we retain your personal data?

We will only store your personal data for as long as necessary to fulfill the purpose for which it was collected or to comply with regulatory or legal requirements. At the end of the period, the data will be deleted or anonymized so that it cannot be individualized.

How can you exercise your rights regarding your personal data?

Applicable regulations grant you certain rights regarding your Personal Information, such as:

- (i) information about the processing of your data;
- (ii) access to the collected data;
- (iii) "anonymization," blocking, or deletion of your data;
- (iv) the revocation of the consent you previously granted to us;
- (v) the rectification of your data when they are incomplete, inaccurate, or outdated; and
- (vi) the portability of your personal data to another service or product provider.

You can make any questions, complaints, and/or requests regarding your personal information

***EMAIL.4 In certain cases, we will retain in our files your personal data that you have requested to be deleted to comply with the purposes described in this Privacy Statement or when there is a contractual, legal, or regulatory obligation to retain your personal information.

Once this purpose has been fulfilled or the contractual, legal, or regulatory obligation has been removed, we will proceed to delete your personal data. We inform you that the NATIONAL DATA PROTECTION AUTHORITY (ANPD) has the authority to respond to requests from those affected by their rights due to violations of the current regulations on personal data protection.

(...)

Changes to the Privacy Statement

If we make changes to the way we process your personal data, we will notify you in advance through individual notification via our usual communication channels (for example, by email), as well as through our websites or applications (through banners, pop-ups, or other notification mechanisms).

III

Information to be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, a reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data relating to the data subject, and its rectification or deletion, or the limitation of its processing, or to object to the processing, as well as the right to data portability;

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- c) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent prior to its withdrawal;

- d) the right to lodge a complaint with a supervisory authority;

- e) whether the communication of personal data is a legal or contractual requirement, or a necessary requirement to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;

- f) the existence of automated decisions, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, significant information about the logic involved, as well as the significance and the expected consequences of such processing for the data subject.

3. When the data controller intends to process personal data for a purpose other than that for which they were collected, they shall provide the data subject, prior to such further processing, information about that other purpose and any additional relevant information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

IV

Right to Erasure ("the right to be forgotten")

Article 17 of the GDPR states the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data

concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), and this processing is not based on another legal ground;
- c) the data subject objects to the processing pursuant to Article 21, paragraph 1, and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21, paragraph 2;
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the data controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8, paragraph 1.

2. When the data controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the data controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers who are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) for exercising the right to freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the data controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89, paragraph 1, insofar as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise or defense of legal claims."

V

Conclusion

Article 65.6 of the LOPDGDD states the following:

"After the admission of the claim, if the data controller or processor demonstrates that they have taken measures to comply with the applicable regulations, the Spanish Agency for Data Protection may resolve to file the complaint when, in the specific case, circumstances advise the adoption of other more moderate or alternative solutions to corrective action, provided that no prior investigative actions or any of the procedures regulated in this organic law have been initiated."

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Therefore, after the AEPD has verified, through the documentation provided by the entity being complained about on January 20, 2024, that a response has been given to the right of erasure exercised by the complaining party, and that its privacy policy complies with data protection regulations, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, in accordance with the aforementioned, the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to CLARA BIKES, S.L. and to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

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